

The Panic button and Global Positioning System facility in all mobile phone handsets Rules, 2016

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Union of India - Act

The Panic button and Global Positioning System facility in all mobile phone handsets Rules, 2016

UNION OF INDIA

India

The Panic button and Global Positioning System facility in all mobile phone handsets Rules, 2016

Rule

THE-PANIC-BUTTON-AND-GLOBAL-POSITIONING-SYSTEM-FACILITY-IN-ALL-MOBILE-PHONE-HANDSETS-RULE S-2016 of 2016

Published on 22 April 2016

Commenced on 22 April 2016

[This is the version of this document from 22 April 2016.]

[Note: The original publication document is not available and this content could not be verified.]

The Panic button and Global Positioning System facility in all mobile phone handsets Rules, 2016

Published vide Notification No. G.S.R. 436(E), dated 22nd April, 2016

Ministry of Communications and Information Technology

(Department of Telecommunications)

G.S.R. 436(E). - In exercise of the powers conferred by sub-section (1) read with clause (v) of sub-section (2) of section 10 of the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the panic button and Global Positioning System facility in all mobile phone handsets Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules, unless the contexts otherwise requires,-

(a)

"Feature phone" means a mobile phone handset that incorporates features such as the ability to access internet and store and play music but lacks the operating system feature of a personal computer;

(b)

"GPS" means the Global Positioning System which contains a satellite-based navigation system that provides location and the time information in all weather conditions, anywhere on or near the earth where there is an unobstructed line of sight to four or more Global Positioning System satellites.

(c)

"Smart phone" means a mobile phone handset with an advanced mobile operating system, which combines features of a personal computer operating system with other features useful for mobile or hand held use;

3.

Panic button in new mobile handset.

- With effect from the 1st January, 2017, no mobile phone handset manufactured company shall sell in India,-

(a)

the Feature phones without the facility of panic button by pressing "Numeric key - 5" or "Numeric key - 9" to invoke emergency call; and

(b)

the Smart phones without the facility of emergency call button by pressing the same for long time to invoke emergency call or the use of existing power on or off button, when short pressed thrice in quick succession.

4.

[GPS in new smart mobile handset.

[Substituted '4. GPS in new mobile hand set.- With effect from the 1st January, 2018, no mobile phone handset manufactured company shall sell the new mobile phone hand set in India without the facility of identifying the location through Satellite based GPS.' by Notification No. G.S.R. 1441(E), dated 23.11.2017 (w.e.f. 22.4.2016)]

- With effect from the 1st January, 2018, no smart phone handset manufacturing company shall sell the new smart mobile phone handset in India without the facility of identifying the location through Satellite based GPS].

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